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AS AMENDED

BILL NO. 1084

and

Reinhardt of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

A. For purposes of this act:

SENATE FLOOR VERSION - HB1084 SFLR
(Bold face denotes Committee Amendments)

1 limited to, communicating with an insurer on an insured's behalf or
2 inspecting, estimating, protecting, repairing, restoring, or
3 replacing the property or mitigating against further damage to the
4 property; and

5 2. "Person" means:

6 a. a natural person,

7 b. any type or form of corporation, company, partnership,
8 proprietorship, association, or other legal entity,
9 and

10 c. a government, governmental subdivision or agency, or
11 other governmental body.

12 B. 1. A person shall not solicit or accept an assignment, in
13 whole or in part, of any post-loss insurance benefit for property
14 damage under an auto collision or comprehensive policy, residential
15 property insurance policy, or commercial property insurance policy.
16 An assignment agreement is against public policy and is null and
17 void, and any contract entered in violation of this section shall be
18 void and unenforceable.

19 2. The provisions of paragraph 1 of this subsection do not
20 apply to any of the following:

21 a. an assignment, transfer, pledge, or conveyance granted
22 to a federally insured financial institution,
23 mortgagee, or a subsequent purchaser of the property,
24 or

1 b. liability coverage under an auto, residential, or
2 commercial property insurance policy.

3 C. Violation of subsection B of this section is considered an
4 unfair or deceptive trade practice. Any person found to have
5 violated the provisions of subsection B of this section shall be
6 subject to the procedures and penalties as other unfair or deceptive
7 trade practices outlined in Title 36 of the Oklahoma Statutes.

8 D. Nothing in this section shall be interpreted to prohibit an
9 attorney from collecting an attorney fee for an action related to a
10 property insurance claim.

11 E. Nothing in this section shall be construed to prohibit an
12 insured from authorizing or directing payment to, or paying, a
13 person for services, materials, or any other thing which may be, or
14 is, covered under an insurance policy. **Insurers shall issue payment**
15 **directly to a person for including, but not limited to, services,**
16 **materials and other items that are covered under an insurance**
17 **policy, when the insured agrees that any person providing such**
18 **services should be paid directly, subject to applicable liens.**

19 SECTION 2. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
21 April 24, 2025 - DO PASS AS AMENDED
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